

(Name of Court)

at

Court office address

**Form 39: Notice of
Approaching Dismissal**

Applicant(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Respondent(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

TO ALL PARTIES:

1. THE CLERK OF THE COURT WILL DISMISS THIS CASE WITHOUT FURTHER NOTICE unless, within 60 days after service of this notice, one of the parties:

- (a) obtains an order under subrule 39(3), 40(3) or 41(3) to lengthen the time to do anything described below;
- (b) files an agreement signed by all parties and their lawyers, if any, for a final order disposing of all issues in the case, and a notice of motion for an order carrying out the agreement;
- (c) serves on all parties and files a notice of withdrawal (Form 12) that discontinues all outstanding claims in the case;
- (d) schedules or adjourns the case for trial; or
- (e) arranges a case conference or settlement conference for the first available date.

2. If a case conference or settlement conference is arranged for a date as described in clause 1 (e) but the hearing does not take place on that date and is not adjourned by a judge, the case will be dismissed without further notice.

3. Any temporary orders, including temporary orders for support and interim restraining orders under section 46 of the *Family Law Act* or under section 35 of the *Children's Law Reform Act*, will expire upon the dismissal of the case.

Put a line through any blank space left on this page.

Date of signature

Signature of clerk of the court